

DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

**TENTATIVE RULING:** The motion is GRANTED. The matter is set for Case Management Conference on October 23, 2026, at 9:30 in Dept. B. The Clerk is directed to send notice to the parties.

Defendant SRGA Resort (SRGA) moves, pursuant to Code of Civil Procedure section 585, subdivision (b), for an order granting Defendant SRGA leave to withdraw its Answer to Plaintiff's Complaint, so that Plaintiff Jessica Fernandez may proceed to request entry of default against Defendant SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

There is no opposition to the Motion in the Court's files.

Based on the foregoing, the Motion is GRANTED.

[1] DEMURRER TO PLAINTIFF MARBIN SANTIS RUIZ'S FIRST AMENDED COMPLAINT

**TENTATIVE RULING:** The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff is granted 10 days' leave from notice of entry of order to amend. (See Rules of Court, rule 3.1320(g).) Defendant is directed to provide a Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.